



Black Rhino – Club Hotel Motel Roma

MN-90008

Phase 1 Determination

Acquisition may be put into effect with conditions

11 August 2026

1. Determination

Notified acquisition	On 21 May 2026, Black Rhino (Club Roma) Pty Ltd and Light Them Up (Roma) Pty Ltd as trustee for Light Them Up (Roma) Trust (collectively, the Acquirer) lodged a notification in respect of their proposed acquisition of business assets, including freehold properties and one leasehold interest, from Speedy Cocktails Pty Ltd and Barry John Waldron as trustee for the Barry Waldron Family Trust (collectively, Speedy Cocktails) with the Australian Competition and Consumer Commission (ACCC). The Acquirer proposes to acquire the following businesses or assets in Roma, Queensland: • Club Hotel Motel Roma, located at 42 McDowall Street, Roma • Cellarbrations at Superstore Roma, a drive-through next to the Club Hotel Motel Roma • the Northern Road Bottle Shop, located at 61 Northern Road Roma • the freehold property and leasehold interests associated with these businesses. (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under sections 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act) that the Acquisition may be put into effect, subject to conditions. Based on the material before it, the ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the market for the retail supply of off-premises takeaway liquor in Roma. The conditions are: a) Black Rhino Group Pty Ltd ACN 609 276 048 and its Related Bodies Corporate (together referred to as Black Rhino) must not put the Acquisition into effect unless the Divestiture Business has been divested to a purchaser approved in writing by the ACCC. b) Black Rhino must provide the ACCC with an executed undertaking under section 87B of the Act in respect of the divestiture of the Divestiture Business, in the form at Attachment A of the determination, within five business days of the date of the determination and comply with that undertaking. (together, the Conditions). The defined terms Divestiture Business and Related Bodies Corporate are as defined in the section 87B undertaking that Black Rhino must give and comply with pursuant to the Conditions.
Parties to the Acquisition	Black Rhino (Club Roma) Pty Ltd and Light Them Up (Roma) Pty Ltd

	(the Acquirer) are both subsidiaries of Black Rhino Group Pty Ltd. Black Rhino operates hospitality venues across Victoria, South Australia and Queensland, specialising in gaming, wagering, family bistros, sports bars, retail liquor, entertainment, and accommodation. In Roma, Black Rhino’s subsidiary, Black Rhino (Royal 99) Pty Ltd, operates Royal on Ninety-Nine (a pub-style venue) located at 99 McDowall Street, Roma and a detached bottle shop, located at Shop 2, 34-38 Hawthorne Street, Roma QLD 4455 (the other listed address for the same business is 73 Arthur Street, Roma). The vendor, Speedy Cocktails, operates Club Hotel Motel Roma, which offers on-premises hospitality services, including dining, gaming, on-premises liquor and/or off-premises takeaway liquor services, function/venue services and a motel that provides short-term accommodation services. Club Hotel Motel Roma also has an on-site drive-through bottle shop (Cellarbrations at Superstore Roma) and an associated detached bottle shop (the Northern Road Bottle Shop).
Reasons for determination	The reasons for the ACCC’s determination are set out in section 2-3.

2. Statement of reasons

- 2.1. When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.
- 2.2. Where the ACCC is satisfied that the acquisition, if put into effect, could, in all the circumstances, have the effect of substantially lessening competition in a market, the ACCC may also consider whether any competition issues can be addressed by one or more conditions.
- 2.3. For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s [merger assessment guidelines](#) and [interim merger process guidelines](#).
- 2.4. For the reasons given below, the ACCC has determined that the Acquisition may be put into effect, subject to conditions.

Overlap between the parties

- 2.5. Black Rhino and Speedy Cocktails (the **Parties**) overlap in Roma in:
 - the retail supply of off-premises takeaway liquor
 - the retail supply of on-premises hospitality services, including dining, gaming, on-premises liquor and/or off-premises takeaway liquor services at pub-style venues

- the supply of ancillary function/venue and catering services.
- 2.6. The ACCC considers that the merged firm would be likely to continue to face competition from multiple alternative suppliers of ancillary function/venue and catering services in Roma, and has not considered this area of overlap further in these reasons.

Industry background

Retail supply of liquor in Queensland

- 2.7. Within Queensland, the retail supply of on-premises liquor and/or off-premises takeaway liquor is regulated by the Office of Liquor and Gaming Regulation (**OLGR**).¹ Queensland's liquor licensing regime differs to other states in that only holders of a Commercial Hotel Licence (**CHL**) may obtain approval from the OLGR to operate a detached bottle shop. Suppliers of off-premises takeaway liquor are therefore limited to commercial hotel licensees.
- 2.8. A CHL authorises the sale of liquor for consumption both on and off the licensed premises during approved opening hours. To qualify for a CHL, a person must meet specific requirements.²
- 2.9. Retail bottle shops typically sell off-premises takeaway liquor as their primary purpose. These bottle shops operate under the authority of a CHL,³ which is associated with a pub/hotel-style venue. Under the applicable liquor licensing framework, the holder of a CHL may operate up to 3 detached bottle shops within a 10-kilometre radius of the licensed pub/hotel premises, subject to compliance with the relevant statutory requirements.⁴
- 2.10. Retail bottle shops supplying off-premises takeaway liquor may operate under a retail banner group, which provides various services for members, including branding, marketing and promotions, loyalty programs and operational support. Bottlemart and Harry Brown are banner group brands present in Roma, owned by Liquor Marketing Group (**LMG**), a member-owned retail liquor group. The other banner group brand with a presence in Roma is Cellarbrations, owned by Australian Liquor Marketers (**ALM**), the liquor wholesale division of Metcash. Although bottle shops may operate under the same retail banners, they may be owned and operated by different businesses.
- 2.11. Banner groups may provide bottle shops with enhanced buying power, promotional programs, recommended retail prices, product range guidelines and marketing support. Based on the information before the ACCC, while these banner group arrangements may include certain requirements for bottle shop operators, they do

¹ In Queensland, any business or organisation that sells or supplies alcohol must hold a relevant licence issued by the OLGR. See [Liquor and wine licences and permits | Business Queensland](#).

² To obtain a CHL, a business must have the principal activity of selling liquor for consumption on the licensed premises, or on and off the premises, together with the provision of meals and accommodation, and premises and catering facilities for people attending a function held on the premises, according to the *Liquor Act 1992* (QLD) s 59(1). To meet these criteria, a CHL is only granted to a business that has a commercial kitchen, seats a minimum of 60 patrons, and at least 2 of the following: a dining facility, self-contained accommodation of at least 3 rooms, or a function room facility available for hire (*Liquor Act 1992* (QLD) s 61(1)).

³ *Liquor Act 1992* (QLD) s 60(1)(d).

⁴ *Liquor Act 1992* (QLD) s 59(3).

not materially limit the operators' ability to determine price and non-price aspects of their offerings, including product range, promotions and opening hours. Further, the ACCC understands that operators of bottle shops can and do switch between banner groups and their associated banner brands.

Retail supply of liquor in Roma

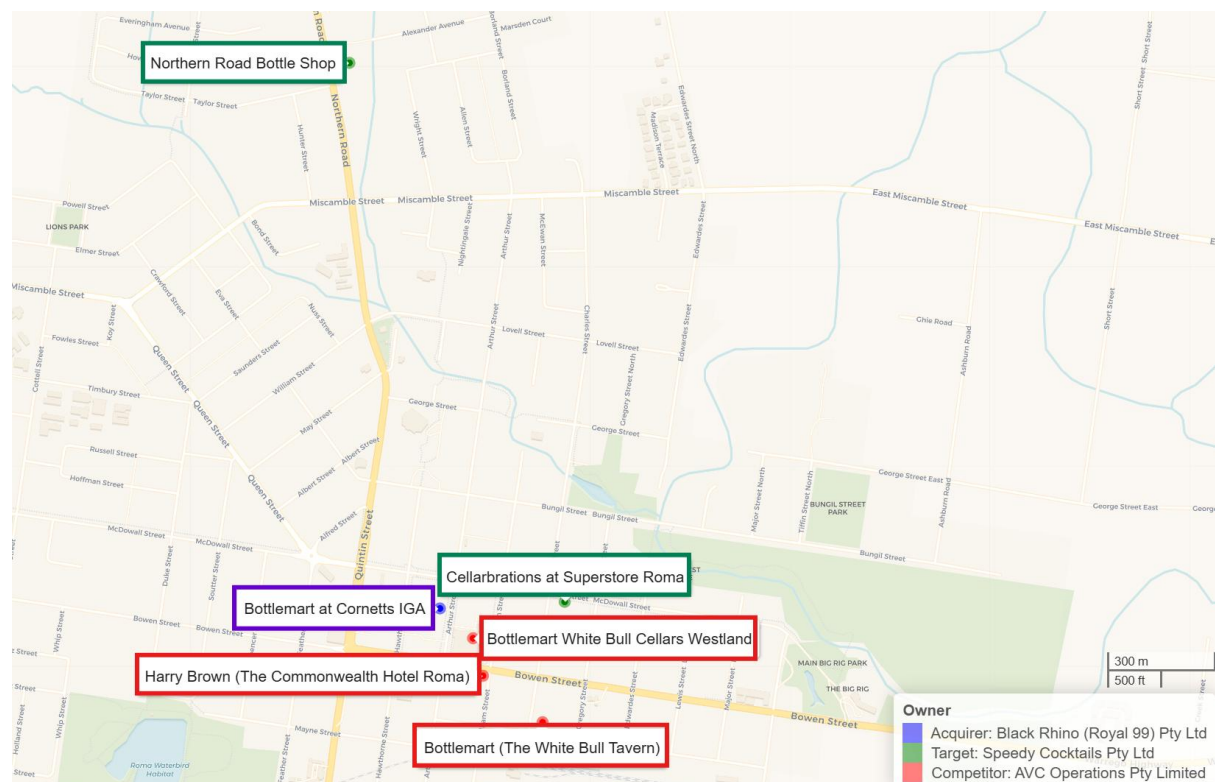
- 2.12. Roma is a regional town in south-west Queensland with an estimated population of 7,100⁵ and is approximately 5-7 hours' drive west of Brisbane. Black Rhino entered the retail supply of off-premises takeaway liquor and on-premises hospitality services in Roma in late 2024 through its purchase of Royal on Ninety-Nine and the associated bottle shop, Thirsty Camel (now Bottlemart), which is located at Shop 2, 34-38 Hawthorne Street, Roma (in the Cornetts IGA complex).
- 2.13. There are currently 6 bottle shops in Roma, owned by 3 operators: Black Rhino, Speedy Cocktails, and Australian Venue Co (**AVC**), as set out in Table 1.

⁵ Roma, QLD reported a population of 6,838 people in the 2021 Census according to the [Australian Bureau of Statistics](#). Calculated at a 3.7% annual growth rate produces an estimate of 7,090 people in 2026.

Table 1 Overview of Roma bottle shops

#	Bottle shop	Banner group	Owner / operator	Address
Site 1	Bottlemart at Cornetts IGA	Bottlemart, LMG	Black Rhino (Acquirer)	Shop 2, 34-38 Hawthorne Street, Roma QLD 4455 (the other listed address for the same business is 73 Arthur Street, Roma)
Site 2	Cellarbrations at Superstore Roma	Cellarbrations, ALM/Metcash	Speedy Cocktails (Vendor)	42 McDowall Street, Roma
Site 3	Northern Road Bottle Shop	Cellarbrations, ALM/Metcash	Speedy Cocktails (Vendor)	61 Northern Road, Roma
Site 4	Harry Brown (the Commonwealth Hotel)	Harry Brown, LMG	AVC	75 Wyndham Street, Roma
Site 5	Bottlemart White Bull Tavern	Bottlemart, LMG	AVC	43 Station Street, Roma
Site 6	Bottlemart White Bull Cellars at Westland Plaza	Bottlemart, LMG	AVC	73 Wyndham Street, Roma

Map 1: retail supply of off-premises takeaway liquor in Roma



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2.14. There are currently 5 pub-style venues in Roma operating under CHLs that offer on-premises hospitality services, owned by 4 operators: Black Rhino, Speedy Cocktails, AVC and an independent partnership. This is set out in Table 2.

Table 2 Overview of on-premises hospitality service providers in Roma – pub-style venue

#	Pub-style venue	Owner / operator	Distance between competitors
1	Royal on Ninety-Nine	Black Rhino (Acquirer)	450 metres
2	Club Hotel Motel Roma	Speedy Cocktails (Vendor)	
3	Commonwealth Hotel	AVC	850m to Royal on Ninety-Nine 400m to Club Hotel Motel Roma
4	White Bull Tavern	AVC	800m to Royal on Ninety-Nine 350m to Club Hotel Motel Roma
5	Queens Arms Hotel	Independent	120m to Royal on Ninety-Nine 300m to Club Hotel Motel Roma

Map 2: retail supply of on-premises hospitality services in Roma – pub-style venue



3. Competition assessment

3.1. The ACCC has considered the effects of the Acquisition by comparing the likely future state of competition if the Acquisition proceeds against the continuation of the current state of competition (being the likely future state of competition if the Acquisition does not proceed).

- 3.2. In reaching its decision, the ACCC has had regard to information provided by the Parties and market participants as well as publicly available information.

Relevant areas of competition

- 3.3. The ACCC considers the relevant areas of competitive overlap for the purposes of its assessment are:
- the retail supply of off-premises takeaway liquor in Roma
 - the retail supply of on-premises hospitality services, including dining, gaming, on-premises liquor and/or off-premises takeaway liquor services at pub-style venues in Roma.

Retail supply of off-premises takeaway liquor – bottle shops in Roma

- 3.4. The Parties submitted information to the ACCC that indicates they compete closely in relation to the retail supply of off-premises takeaway liquor in Roma via their respective bottle shops.
- 3.5. The ACCC has had regard to information from a range of market participants that indicates that bottle shops compete in local areas on a variety of factors, including prices and promotions, and the perceived quality and range of products and service offered. Feedback also indicates that location (such as being near a supermarket and/or pub) and convenience factors, such as opening hours and ease of vehicle access, also influence purchasing decisions.
- 3.6. The ACCC has examined information regarding both price and non-price factors in assessing how closely the Parties' bottle shops compete. Information from the Parties demonstrates that Speedy Cocktails' 2 bottle shops and Black Rhino's bottle shop provide a range of off-premises takeaway liquor options including beer, wine, pre-mixed drinks, spirits and cider, and that Cellarbrations at Superstore Roma (Speedy Cocktails) stocks a wider range of products than Bottlemart at Cornetts IGA (Black Rhino). The Parties' data further indicates that their bottle shops have similar top selling products (with some exceptions), and similar pricing at the aggregate level by product category.
- 3.7. Bottlemart at Cornetts IGA (Site 1, Black Rhino) and Northern Road Bottle Shop (Site 3, Speedy Cocktails) both have walk-in pedestrian access (i.e. with no drive through access), while the Cellarbrations at Superstore Roma (Site 2, Speedy Cocktails) has drive-through and pedestrian access. Opening hours range from 10:00am to 7:00-8:00pm 7 days a week for Northern Road Bottle Shop (Speedy Cocktails) and Bottlemart at Cornetts IGA (Black Rhino), while Cellarbrations at Superstore Roma (Speedy Cocktails) has extended opening hours from 7:00am to 10:00pm-11:30pm 7 days a week.
- 3.8. Consumers typically purchase the bulk of their off-premises takeaway liquor from bottle shops, with information presented to the ACCC, including from market participants, indicating that the sale of off-premises takeaway liquor from pub-style venues or distilleries is not generally considered a close substitute. This is because these other venues do not offer the same breadth of product range or convenience as bottle shops.

- 3.9. The ACCC has concluded that the relevant geographic scope for the retail supply of off-premises takeaway liquor is likely to be limited to Roma. Roma is geographically remote, and bottle shops outside Roma are a significant driving distance away. The ACCC therefore considers that a large proportion of local consumers are unlikely to travel beyond Roma to purchase off-premises takeaway liquor on a regular or frequent basis.

Retail supply of on-premises hospitality services – pub-style venues in Roma

- 3.10. The Parties compete in relation to the retail supply of on-premises hospitality services in Roma via their pub-style venues – Royal on Ninety-Nine and Club Hotel Motel Roma. Each pub-style venue provides multiple bar offerings (e.g. a sports bar and public bar), on-premises dining and gaming machines.
- 3.11. Royal on Ninety-Nine operates from 7:00am-12:00am daily, while Club Hotel Motel Roma is open 10:00am-12:00am daily, with discretion to open until 2:00am on Friday and Saturday.
- 3.12. The ACCC has also considered the offerings of several other venues in Roma that provide limited bar services and/or food and/or gaming services, such as the RSL Roma, Roma Turf Club, and Roma Bowls Club. However, the ACCC does not consider that these other venues compete closely with the Parties' pub style venues in Roma. This is because information provided to the ACCC indicates that these venues in Roma typically have a specific focus, such as supporting veterans or promoting specific sports, which is reflected in their restricted opening hours and limited food and beverage options compared to pubs.
- 3.13. Based on their limited services the ACCC considers that these venues are not a close substitute for consumers seeking access to on-premises hospitality services in Roma.
- 3.14. The ACCC considers that the relevant geographic scope for the supply of on-premises hospitality services is likely to be Roma. The nearest pub-style venue outside Roma is in Wallumbilla, around 40 km from central Roma. The ACCC considers that a large proportion of consumers seeking on-premises hospitality services on a regular basis are unlikely to frequently travel the significantly further distance to pubs outside of Roma.

Competition effects in the retail supply of off-premises takeaway liquor in Roma, QLD

- 3.15. The ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the retail supply of off-premises takeaway liquor in Roma.
- 3.16. Following the Acquisition, the number of bottle shop operators in Roma would reduce from 3 to 2. AVC would be the only remaining competitor to Black Rhino. The Acquisition would therefore materially increase concentration in an already highly concentrated market.
- 3.17. In addition, the Acquisition could significantly reduce the competitive constraint on Black Rhino. Noting the analysis set out above in paragraphs 3.4 – 3.8, the ACCC considers that Black Rhino's bottle shop closely competes with Speedy Cocktails' 2

bottle shops on both price and non-price factors. The Acquisition would therefore remove competition between Black Rhino and Speedy Cocktails, notwithstanding that AVC would continue to compete.

- 3.18. The ACCC considers there is limited likelihood of timely new entry and expansion. Market feedback has indicated that barriers to entry and expansion are likely to be high. This is due to various factors, including the regulatory requirement for a bottle shop to be associated with a CHL, upfront capital investments, potential uncertainty over the timing and level of return in a demand-limited market, and the presence of existing suppliers.
- 3.19. As a result, post-Acquisition, the merged entity could have an increased ability to raise prices and/or reduce the quality and service provided in the retail supply of off-premises takeaway liquor in Roma.
- 3.20. The ACCC considered Black Rhino's submission regarding the structural characteristics of off-premises takeaway liquor retailing in smaller markets in regional Australia, which questioned whether Roma can economically sustain multiple bottle shop operators. However, as no evidence was put to the ACCC indicating that any existing bottle shop operator in Roma is unviable, the ACCC has not considered this point further.
- 3.21. Having regard to the combination of factors identified in paragraphs 3.15 – 3.19, the ACCC considers, absent any condition, the Acquisition could have the effect of substantially lessening competition in the retail supply of off-premises takeaway liquor products in Roma.

Competition effects in the retail supply of on-premises hospitality services in Roma, QLD

- 3.22. The ACCC considers that the Acquisition is unlikely to have the effect of substantially lessening competition in the retail supply of on-premises hospitality services in Roma.
- 3.23. The ACCC considers the presence of alternative pub-style venues in Roma would likely continue to constrain the merged entity post-Acquisition, such that the merged entity would be unlikely to profitably increase prices and/or reduce the quality of services provided.
- 3.24. Post-Acquisition, in addition to the 2 pub-style venues owned by the merged entity, there would be 3 alternative pub-style venues owned by 2 other entities (set out in Table 2): AVC, which owns the White Bull Tavern and the Commonwealth Hotel, and an independent partnership, which owns the Queens Arms Hotel. All pub-style venues are clustered in a central location (identified in Map 2) with the alternative venues located within walking distance at 120 metres to 850 metres from the Parties' pub-style venues. The alternative pub-style venues offer similar on-premises hospitality services: dining, gaming, on-premises liquor and/or off-premises takeaway liquor, and opening hours from 10:00am-10:00pm/12:00am daily. Market feedback received by the ACCC indicated the various venues offer a degree of differentiated service levels and quality.
- 3.25. Having regard to the availability of local alternative options and local competitive dynamics, the ACCC considers that the Acquisition is unlikely to have the effect of

substantially lessening competition in the retail supply of on-premises hospitality services in Roma.

4. Conditions

- 4.1. The ACCC has determined under s51ABZE(1) of the Act that the Acquisition may be put into effect, subject to the following conditions:
- a) Black Rhino Group Pty Ltd ACN 609 276 048 and its Related Bodies Corporate (together referred to as Black Rhino) must not put the Acquisition into effect unless the Divestiture Business has been divested to a purchaser approved in writing by the ACCC.
 - b) Black Rhino must provide the ACCC with an executed undertaking under section 87B of the Act in respect of the divestiture of the Divestiture Business, in the form at Attachment A of the determination, within five business days of the date of the determination and comply with that undertaking.
- (together, the **Conditions**).
- 4.2. The ACCC must not include conditions unless it is satisfied that, disregarding any conditions the ACCC could include, the Acquisition, if put into effect, could, in all the circumstances, have the effect of substantially lessening competition in any market.
- 4.3. The ACCC must have regard to all relevant matters, and may have regard to the effect on the interests of consumers that compliance with the conditions would have, or be likely to have, or any consumer benefits that would result, or be likely to result from compliance with the conditions.
- 4.4. It is a contravention of section 45AZ of the Act for a person to put the Acquisition into effect and to not comply with any conditions. Where a person does not comply with conditions, the Federal Court may make orders including, in some circumstances, divestiture or a declaration that the acquisition is void.

Assessment with the Conditions

- 4.5. As set out above, the ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition, could, in all the circumstances, have the effect of substantially lessening competition in the retail supply of off-premises takeaway liquor in Roma, Queensland. To address this, the ACCC has decided to include the Conditions in its Determination.
- 4.6. The objective of the Conditions is to address the competition issues identified in respect of the Acquisition, as set out in this determination and statement of reasons.
- 4.7. The Conditions incorporate a remedy offer Black Rhino made to the ACCC on 9 July 2026, with some changes that the ACCC considered appropriate, including to ensure appropriate standard form protections are in place.

The Conditions address the competition issues

- 4.8. The Conditions address the competition issue identified in respect of the supply of off-premises takeaway liquor in Roma detailed above by:

- preserving an independent supplier and competitive constraint that would otherwise be lost as a result of the Acquisition
 - facilitating the entry or expansion of an independent competitor through divestiture to a purchaser approved by the ACCC.
- 4.9. The ACCC considers the Conditions are effective in addressing the structural change to the market which would otherwise be brought about by the Acquisition, by ensuring that 3 independent bottle shop owners continue to operate in Roma.

The Conditions can be effectively implemented

- 4.10. The ACCC has had regard to whether there are risks associated with implementation of the Conditions that may limit the effectiveness of the Conditions in addressing the competition issues. The ACCC considers the Conditions can be effectively implemented.

Composition of the Divestiture Business

- 4.11. The ACCC considers that the Divestiture Business is appropriately configured and that a suitable purchaser may operate it effectively. The ACCC has had regard to third party feedback in reaching this view as well as the nature and terms of the Conditions and the Undertaking.
- 4.12. In particular, the Divestiture Business is defined expansively in the Undertaking to include all assets, rights, interests and other property associated with the relevant business including what is necessary for the Approved Purchaser to operate the business as a viable, ongoing and effective independent competitor.
- 4.13. The Conditions also require divestiture to an ACCC-approved purchaser before the Acquisition may be put into effect. As such, if the Divestiture Business is not configured to attract an appropriate purchaser, or cannot be separated for divestiture, the Acquisition will not proceed, and the competition issues from the Acquisition will not arise.

Emergence of appropriate purchaser

- 4.14. Based on submissions provided by the Parties and third party feedback, the ACCC considers an appropriate purchaser can emerge to support a timely and effective divestiture to an ACCC-approved purchaser. The ACCC will consider the materials provided to it in a Proposed Purchaser Notice and may have regard to the factors set out in clause 6.5 of the Undertaking.
- 4.15. As set out at 2.7 – 2.9 above, suppliers of off-premises takeaway liquor in Queensland are limited to commercial hotel licensees, who in turn are limited to operating up to 3 detached bottle shops that must be within a 10-kilometre radius of the licensed pub/hotel premises (and subject to compliance with relevant statutory requirements). The ACCC has had regard to this in assessing the likelihood of an appropriate purchaser emerging, noting this may limit potential purchasers available for the Divestiture Business.
- 4.16. The ACCC notes that the Conditions require divestiture to an ACCC-approved purchaser before the Acquisition may be put into effect. As such, if an appropriate

purchaser does not emerge, the Acquisition will not proceed, and the competition issues from the Acquisition will not arise.

Integrity of Divestiture Business and other considerations

- 4.17. The ACCC considers that the integrity of the Divestiture Business will be protected prior to divestiture, and took into account other considerations related to the effective implementation of the Conditions.
- 4.18. The ACCC considers that the risk to the integrity of the Divestiture Business is appropriately managed in the circumstances, including because:
- the Undertaking includes Divestiture Business Protection obligations on Black Rhino
 - the Conditions and the Undertaking provide that the Acquisition may only complete once the Divestiture Business has been divested to an ACCC-approved purchaser, which the ACCC considers also incentivises Black Rhino to ensure the business is appropriately managed and maintained prior to divestiture, including so that it is attractive to purchasers.
- 4.19. The ACCC also considers that any risk that divestiture will be frustrated, for example, due to third-party consents and renewals is appropriately managed by the terms of the Undertaking, and because divestiture of the Divestiture Business must occur before the Acquisition can complete.
- 4.20. The ACCC notes that performance of certain obligations in the Undertaking requires Black Rhino to procure that Speedy Cocktails performs the obligation, who is not a party to the Undertaking. The ACCC considers this is unlikely to impact the effective implementation of the conditions noting that Black Rhino must not complete the Acquisition unless divestiture occurs.

5. Applications for review and public benefit applications

Applications for review

- 5.1. A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's acquisitions register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Public benefit application

- 5.2. The notifying party may also apply to the ACCC for a determination that the acquisition would be of public benefit. Pursuant to section 51ABZP(2) of the Act, this application must be made no later than 21 calendar days after the ACCC made this determination.

**Determination made by a division of the Commission constituted by a direction issued
pursuant to section 19 of the Act**

Undertaking to the Australian Competition and Consumer Commission

Given under section 87B of the *Competition and Consumer Act 2010* (Cth) by:

Black Rhino Group Pty Ltd ACN 609 276 048

Black Rhino (Club Roma) Pty Ltd ACN 693 060 187

Light Them Up (Roma) Pty Ltd ACN 693 060 301 as trustee for
Light Them Up (Roma) Trust ABN 17 705 523 498

Black Rhino (Royal 99) Pty Ltd ACN 675 226 758

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1. Persons giving this Undertaking

1.1 This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by

- (a) Black Rhino Group Pty Ltd ACN 609 276 048 on behalf of itself and its subsidiaries,
 - (b) Black Rhino (Club Roma) Pty Ltd ACN 693 060 187,
 - (c) Light Them Up (Roma) Pty Ltd ACN 693 060 301 as trustee for Light Them Up (Roma) Trust ABN 17 705 523 498, and
 - (d) Black Rhino (Royal 99) Pty Ltd ACN 675 226 758
- (together referred to as **Black Rhino** in this Undertaking).

2. Background

The parties to the proposed acquisition

- 2.1 Black Rhino (Club Roma) Pty Ltd (ACN 693 060 187) and Light Them Up (Roma) Pty Ltd ACN 693 060 301 as trustee for Light Them Up (Roma) Trust ABN 17 705 523 498 (together referred to as the **Acquirer** in this Undertaking) are subsidiaries of Black Rhino Group Pty Ltd ACN 609 276 048.
- 2.2 Speedy Cocktails Pty Ltd (ACN 619 330 255) and Barry John Waldron as trustee for the Barry Waldron Family Trust (ABN 95 506 126 845) (together referred to as the **Target** in this Undertaking).

The Acquisition

2.3 The Acquirer is proposing to acquire:

- (a) The Target's business, Club Hotel Motel Roma, comprising of:
 - (i) pub and motel trading as 'Club Hotel Motel Roma' located at 42 McDowall Street, Roma QLD 4455 and 8-76 Charles Street, Roma QLD 4455;
 - (ii) McDowall DBS; and
 - (iii) Northern Road DBS.
- (b) The freehold properties from which Club Hotel Motel Roma and the McDowall DBS operate and the leasehold interest in the premises from which Northern Road DBS operates.

(the **Acquisition**)

The Notification

- 2.4 On 21 May 2026, the Acquirer lodged a notification in respect of the Acquisition with the ACCC (the **Notification**).
- 2.5 The objective of this Undertaking is to address the concerns about the Acquisition set out in the ACCC's determination and statement of reasons in respect of the Notification.

3. Commencement of this Undertaking

- 3.1 This Undertaking comes into effect when:
- (a) this Undertaking is executed by Black Rhino; and
 - (b) this Undertaking so executed is accepted by the ACCC,
- (the **Commencement Date**).

4. Cessation of ongoing obligations

Revocation

- 4.1 The ACCC may, at any time, revoke its acceptance of this Undertaking if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading. Such a revocation must be express and in writing.

Waiver

- 4.2 The ACCC may, at any time, waive any of the obligations contained in this Undertaking. Such a waiver must be express and in writing.

Extension

- 4.3 The ACCC may, at any time, extend the date by which any of the obligations in this Undertaking is to be satisfied. Such an extension must be express and in writing.

Survival

- 4.4 Unless and until this Undertaking is withdrawn in accordance with s87B(2) of the Act, clauses 1, 2, 3, 4, 9, 10, 11, 12, 13, 14 and 15 survive completion of the obligations in clauses 5, 6, 7, 8, and Schedule 3 and Confidential Schedule 4.

5. Divestiture of the Divestiture Business

Divestiture

- 5.1 Black Rhino must, in accordance with this Undertaking, divest, or cause the divestiture of, the Divestiture Business only to an Approved Purchaser.
- 5.2 Black Rhino must not complete the Acquisition unless and until it has divested, or caused the divestiture of, the Divestiture Business by:
- (a) the sale, assignment, transfer and/or licence of all of the applicable assets in Schedule 3 to the Approved Purchaser, pursuant to the Approved Sale and Purchase Agreement and within the Sale Period;
 - (b) the transfer or grant to the Approved Purchaser of all Consents pursuant to clauses 5.5 to 5.6;
 - (c) the transfer of any Transferred Personnel required pursuant to clauses 5.7 to 5.8;
- 5.3 Black Rhino must
- (a) comply with any Approved Transitional Technical Assistance Agreement required pursuant to clauses 5.9 to 5.11; and

- (b) comply with any Approved Transitional Supply Agreement required pursuant to clauses 5.12 to 5.14.

5.4 The legal and beneficial ownership of the Divestiture Business must pass to the Approved Purchaser contemporaneously with or before completion of the Acquisition.

Consents

5.5 Black Rhino must:

- (a) obtain or assist the Approved Purchaser to obtain as expeditiously as possible, all Consents as required before completion of the divestiture of the Divestiture Business;
- (b) comply with all requirements necessary to obtain any Consents, including by promptly providing all information necessary for the Consents to be given;
- (c) act in good faith in its negotiations with the Approved Purchaser in relation to obtaining any Consents;
- (d) promptly pay the costs and expenses of any third party reasonably incurred in providing the Consents; and
- (e) enter an agreement with the Approved Purchaser and approved by the ACCC, or vary any existing Approved Transitional Supply Agreement as required by the Approved Purchaser, in relation to any goods or services that are required for the operation of the Divestiture Business which may be affected by any failure to gain a Consent.

5.6 If, seven Business Days before completion of the divestiture of the Divestiture Business, the Approved Purchaser does not or is otherwise unable to obtain one or more Consents, then Black Rhino must:

- (a) immediately provide to the ACCC in writing details of the:
 - (i) Consents that have not been obtained;
 - (ii) reasons why the Consents have not been obtained; and
 - (iii) information or material required to obtain the Consents.
- (b) continue to do everything in its power to satisfy clause 5.4 as soon as possible after the completion of the divestiture of the Divestiture Business (and until such time as clause 5.4 is satisfied).

Transferred Personnel

5.7 At the option of the Approved Purchaser, Black Rhino must transfer to the Approved Purchaser:

- (a) all employees; and
- (b) all service providers under a contract for service;

who are, in the view of the Approved Purchaser, required for the Approved Purchaser to maintain, operate or conduct effectively the Divestiture Business and who consent to the transfer of their employment or contract for service to the Approved Purchaser (**Transferred Personnel**).

5.8 When fulfilling its obligations under clause 5.7, Black Rhino must:

- (a) encourage all Transferred Personnel to remain with the Divestiture Business, including offering incentives based on industry practice;
- (b) not directly or indirectly discourage any Transferred Personnel from any obligations to provide services to the Divestiture Business;
- (c) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any obligations to provide services to Black Rhino or to the Seller;
- (d) effective on the date of the divestiture of the Divestiture Business, release the Transferred Personnel from any non-compete or similar restraint of trade obligation, to the extent that such an obligation would otherwise prevent the person from performing his or her contemplated role in relation to the Divestiture Business; and
- (e) not procure, promote or encourage the transfer of any of the Transferred Personnel from the Approved Purchaser to Black Rhino or to the Seller for a period of 12 months after the completion of the divestiture of the Divestiture Business.

Technical Assistance

- 5.9 At the option of the Approved Purchaser, Black Rhino must supply to the Approved Purchaser, under an Approved Transitional Technical Assistance Agreement, any Technical Assistance that is required by the Approved Purchaser in order to operate the Divestiture Business.
- 5.10 Black Rhino must ensure that any Approved Transitional Technical Assistance Agreement, and any renewal or extension of an Approved Transitional Technical Assistance Agreement, provides for the supply of Technical Assistance:
- (a) on a transitional basis for a period that is nominated by the Approved Purchaser and approved in writing by the ACCC; and
 - (b) at cost price and otherwise on arm's length terms.
- 5.11 To avoid doubt, Black Rhino must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Technical Assistance Agreement. Without limiting the ACCC's discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Technical Assistance Agreement, the ACCC will have regard to the criteria set out in clauses 5.9 and 5.10.

Transitional Supply Agreements

- 5.12 At the option of the Approved Purchaser, Black Rhino must ensure the continued supply by Black Rhino to the Approved Purchaser, under an Approved Transitional Supply Agreement, of any goods or services that are required by the Approved Purchaser in order for the Approved Purchaser to be established as a viable, effective, stand-alone, independent and long-term competitor in the retail supply of off-premises takeaway liquor in Roma.
- 5.13 Black Rhino must ensure that any Approved Transitional Supply Agreement and any renewal or extension of an Approved Transitional Supply Agreement:
- (a) is for a reasonable transitional period, to be nominated by the Approved Purchaser and approved in writing by the ACCC;

- (b) provides for the supply of the included goods and services at cost price; and
 - (c) is on such terms other than price which are no less favourable to the Approved Purchaser than arm's length terms.
- 5.14 To avoid doubt, Black Rhino must seek prior written approval from the ACCC of any renewal or extension of an Approved Transitional Supply Agreement. Without limiting the ACCC's discretion in making a decision on whether to approve a renewal or extension of an Approved Transitional Supply Agreement, the ACCC will have regard to the criteria set out in clauses 5.12 and 5.13.

6. Process for approving a proposed purchaser

Potential purchasers

- 6.1 Black Rhino must provide the ACCC with:
- (a) the identity of any person who expresses an interest in acquiring the Divestiture Business;
 - (b) the status of negotiations with each person; and
 - (c) a copy of each person's offer to acquire the Divestiture Business, where relevant;
- at the following times:
- (d) as soon as possible following the Commencement Date for those persons who express interest before the Commencement Date;
 - (e) after the Commencement Date, within 10 Business Days of each person expressing the interest and/or providing an offer;
- regardless of whether the person subsequently withdraws or is declined.

Provision of a notice for a Proposed Purchaser

- 6.2 To seek ACCC approval for a Proposed Purchaser, Black Rhino must provide the ACCC with a notice in the form prescribed in Schedule 2 to this Undertaking (**Proposed Purchaser Notice**), including a draft sale and purchase agreement, a draft transitional technical assistance agreement (where required by the Proposed Purchaser), and a draft transitional supply agreement (where required by the Proposed Purchaser).
- 6.3 The Proposed Purchaser Notice must be provided to the ACCC at least 20 Business Days prior to the end of the Sale Period.

Approval of a Proposed Purchaser after the Commencement Date

- 6.4 The ACCC may, in its discretion, approve or reject in writing the Proposed Purchaser identified in the Proposed Purchaser Notice. In exercising this discretion, the ACCC will consider, without limitation:
- (a) the draft sale and purchase agreement attached to the Proposed Purchaser Notice;
 - (b) any draft transitional technical assistance agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.9 and 5.10; and

- (c) any draft transitional supply agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clauses 5.12 and 5.13.

6.5 Without limiting the ACCC's discretion, in making the decision pursuant to clause 6.4, the factors to which the ACCC may have regard include whether the:

- (a) draft sale and purchase agreement is consistent with this Undertaking;
- (b) Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;
- (c) Proposed Purchaser is independent of Black Rhino;
- (d) Proposed Purchaser is of good financial standing;
- (e) Proposed Purchaser has a history of competition law compliance;
- (f) Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;
- (g) Proposed Purchaser is able to conduct the Divestiture Business effectively; and
- (h) divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including in relation to the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser.

6.6 The ACCC may revoke an Approved Purchaser's status as the Approved Purchaser if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

7. Divestiture Business Protection

Protection of the Divestiture Business

7.1 From the Commencement Date until the end of the Sale Period, Black Rhino must not sell or transfer its interest, or any assets comprising part of, or used in, the Divestiture Business (other than the sale of goods and services in the ordinary course of business) or make any Material Change, except in accordance with this Undertaking or (subject to the other terms of this Undertaking) as necessary to allow completion of the Acquisition.

Black Rhino's obligations in relation to the Divestiture Business prior to completion of divestiture

7.2 Without limiting this clause 7, Black Rhino must, from the Commencement Date until completion of the divestiture of the Divestiture Business or the end of the Sale Period, take all steps available to it to:

- (a) ensure that the Divestiture Business is managed and operated in the ordinary course of business as a fully operational, competitive going concern and in such a way that preserves the economic viability, marketability, competitiveness and goodwill of the Divestiture Business at the Commencement Date;
- (b) continue to provide access to working capital and sources of credit for the Divestiture Business in a manner which is consistent with the financing of the Divestiture Business before the Commencement Date;

- (c) continue to provide administrative and technical support for the Divestiture Business in a manner which is consistent with the operation of the Divestiture Business before the Commencement Date and in accordance with any plans established before the Commencement Date;
- (d) continue existing Agreements relating to the Divestiture Business with customers, suppliers and/or other third parties that are in place at the Commencement Date;
- (e) renew or replace upon expiry Material Contracts for the provision of goods or services to the Divestiture Business on commercial terms favourable to the Divestiture Business;
- (f) maintain the supply of those goods and services that are part of the Divestiture Business to existing customers in a manner consistent with the supply of those goods and services as at the Commencement Date;
- (g) maintain the standard of manufacture, distribution, promotion and sale of those products which form part of the Divestiture Business as at the Commencement Date;
- (h) promote and market the products that form part of the Divestiture Business in accordance with any plans established before the Commencement Date; and
- (i) carry out such other actions or plans as necessary or convenient to maintain the Divestiture Business as an effectively competitive going concern.

Personnel of the Divestiture Business

- 7.3 From the Commencement Date until completion of the divestiture of the Divestiture Business or the end of the Sale Period, Black Rhino must:
- (a) replace any
 - (i) Transferred Personnel; or
 - (ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business;
 who leave or will leave the Divestiture Business before divestiture;
 - (b) not terminate or vary the terms of employment or engagement (or agree to do any of those things) of any of the
 - (i) Transferred Personnel; or
 - (ii) if the Transferred Personnel have not yet been identified, any personnel necessary for the operation of the Divestiture Business; and
 - (iii) not directly or indirectly procure, promote or encourage the redeployment of personnel necessary for the operation of the Divestiture Business as at the Commencement Date to any other business operated by Black Rhino or the Seller.
- 7.4 As soon as practicable after the Commencement Date, Black Rhino must direct its personnel, including directors, contractors, managers, officers, employees and agents not to do anything inconsistent with Black Rhino's obligations under this Undertaking.

Black Rhino's ongoing obligations in relation to the Divestiture Business

- 7.5 To the extent Black Rhino has obligations in relation to the provision of transitional technical assistance or continued supply pursuant to clauses 5.9 to 5.14 of this Undertaking in relation to the Divestiture Business, Black Rhino must not sell, assign, transfer, and/or licence directly or indirectly any of the assets necessary to fulfil such obligations without the prior written consent of the ACCC.

8. Failure to divest the Divestiture Business

- 8.1 In the event that the divestiture of the Divestiture Business to an Approved Purchaser is not completed by the end of the Sale Period, Black Rhino must not complete the Acquisition.

9. Notification of key dates and ACCC requests for information

- 9.1 Black Rhino must notify the ACCC in writing of:
- (a) the anticipated completion date of the Acquisition, at least five Business Days before that date;
 - (b) the anticipated date of the completion of the divestiture of the Divestiture Business, at least five Business Days before that date;
 - (c) the occurrence of the completion of the Acquisition within one Business Day of that date; and
 - (d) the occurrence of the completion of the divestiture of the Divestiture Business, within one Business Day of that date.
- 9.2 The ACCC may direct Black Rhino in respect of its compliance with this Undertaking to, and Black Rhino must:
- (a) furnish information to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce documents and materials to the ACCC within Black Rhino's custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.
- 9.3 Any direction made by the ACCC under clause 9.2 will be notified to the Black Rhino, in accordance with clause 15.2.
- 9.4 Information furnished, documents and material produced or information given in response to any request or direction from the ACCC under this clause 9 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.
- 9.5 Nothing in this clause 9 requires the provision of information or documents in respect of which Black Rhino has a claim of legal professional or other privilege.

10. Disclosure of this Undertaking

- 10.1 Black Rhino and the ACCC agree that Confidential Schedule 4 will remain confidential until after the completion of the divestiture of the Divestiture Business.
- 10.2 Black Rhino acknowledges that the ACCC may:
- (a) make this Undertaking publicly available;

- (b) publish this Undertaking on its Public Section 87B Undertakings Register and Public Mergers Register; and
 - (c) from time to time publicly refer to this Undertaking.
- 10.3 Nothing in clause 10.1 or the confidential parts of this Undertaking referred to in clause 10.1 prevents the ACCC from disclosing such information as is:
 - (a) required by law;
 - (b) permitted by section 155AAA of the Act;
 - (c) necessary for the purpose of enforcement action under section 87B of the Act; or
 - (d) necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with this Undertaking.
- 10.4 Nothing in clause 10.1 or the confidential parts of this Undertaking referred to in clause 10.1 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.

11. Obligation to procure

- 11.1 Where the performance of an obligation under this Undertaking requires a Related Body Corporate of Black Rhino to take or refrain from taking some action, Black Rhino will procure that Related Body Corporate to take or refrain from taking that action.
- 11.2 Where the performance of an obligation under this Undertaking requires taking or refraining from taking some action in relation to Northern Road DBS, Black Rhino must procure that the Seller takes or refrains from taking that action to perform that obligation and, to the extent Black Rhino is capable of doing so, must take all actions reasonably necessary to facilitate, give effect to and secure compliance with that obligation. Black Rhino must not do, or omit to do, anything that would hinder, prevent or delay the Seller's performance of obligations in relation to Northern Road DBS.

12. No Derogation

- 12.1 This Undertaking does not prevent the ACCC from taking enforcement action at any time, whether during or after the period of this Undertaking, in respect of any breach by Black Rhino of any term under this Undertaking.
- 12.2 Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that Black Rhino does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

13. Change of Control

- 13.1 In the event that a Change of Control is reasonably expected to occur before the end of the Sale Period, Black Rhino must:
 - (a) notify the ACCC of this expectation as soon as practicable; and

- (b) only implement a Change of Control to another person or entity if that person or entity has given a section 87B undertaking to the ACCC that requires it to comply with the same obligations as are imposed on Black Rhino pursuant to this Undertaking, or on terms that are otherwise acceptable to the ACCC, unless the ACCC has notified Black Rhino in writing that a section 87B undertaking under this clause is not required.

14. Costs

- 14.1 Black Rhino must pay all of its own costs incurred in relation to this Undertaking.

15. Notices

Giving Notices

- 15.1 Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Email address: mergers@accc.gov.au

Attention: Executive General Manager

Mergers and Exemptions Assessment Division

With a copy sent to: mergersru@accc.gov.au

Attention: Director, Remedies Unit

Merger Surveillance & Coordination Branch

Mergers and Exemptions Assessment Division

- 15.2 Any notice or communication to Black Rhino pursuant to this Undertaking must be sent to:

Name: **[Redacted – Confidential]**

Address: **[Redacted – Confidential]**

Email Address: **[Redacted – Confidential]**

Attention: **[Redacted – Confidential]**

With a copy sent to:

Name: **[Redacted – Confidential]**

Address: **[Redacted – Confidential]**

Email Address: **[Redacted – Confidential]**

Attention: **[Redacted – Confidential]**

- 15.3 If sent by post, notices are taken to be received three Business Days after posting (or seven Business Days after posting if sent to or from a place outside Australia).

- 15.4 If sent by email, notices are taken to be received at the time shown in the email as the time the email was sent.

Change of contact details

- 15.5 Black Rhino must notify the ACCC of a change to its contact details within three Business Days.
- 15.6 Any notice or communication will be sent to the most recently advised contact details and subject to clauses 15.3 and 15.4, will be taken to be received.

16. Defined terms and interpretation

Definitions in the Dictionary

- 16.1 A term or expression starting with a capital letter:
- (a) which is defined in the Dictionary in Part 1 of Schedule 1 (**Dictionary**), has the meaning given to it in the Dictionary; or
 - (b) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act.

Interpretation

- 16.2 Part 2 of Schedule 1 sets out rules of interpretation for this Undertaking.

Execution Page

EXECUTED as an Undertaking.

DATED

2026

EXECUTED by Black Rhino Group Pty Ltd ACN 609 276 048 pursuant to section 127(1) of the *Corporations Act 2001* (Cth):

Signature of Sole Director

Name of Sole Director

DATED

2026

EXECUTED by Black Rhino (Club Roma) Pty Ltd ACN 693 060 187 pursuant to section 127(1) of the *Corporations Act 2001* (Cth):

Signature of Sole Director

DAVID TOMSIC

Name of Sole Director

DATED

2026

EXECUTED by Light Them Up (Roma) Pty Ltd ACN 693 060 301 as trustee for Light Them Up (Roma) Trust ABN 17 705 523 498 pursuant to section 127(1) of the *Corporations Act 2001* (Cth):

Signature of Sole Director

DAVID TOMSIC

Name of Sole Director

DATED

2026

EXECUTED by Black Rhino (Royal 99) Pty Ltd ACN
675 226 758 pursuant to section 127(1) of the
Corporations Act 2001 (Cth):

Signature of Sole Director

DAVID TOMSIC
Name of Sole Director

Accepted by the Australian Competition and Consumer Commission pursuant to section 87B of the *Competition and Consumer Act 2010* (Cth) on:

Date

and signed on behalf of the Commission:

Chair

Date

Schedule 1 Dictionary and interpretation

1. Dictionary

ACCC means Australian Competition and Consumer Commission.

Acquisition is defined in clause 2 of this Undertaking.

Act means the *Competition and Consumer Act 2010* (Cth).

Agreements means any contract, arrangement or understanding, including any contract, arrangement or understanding to renew, amend, vary or extend any contract, arrangement or understanding.

Approved Purchaser means the person approved by the ACCC under clause 6 of this Undertaking.

Approved Sale and Purchase Agreement means the contract approved by the ACCC in accordance with the terms of this Undertaking, by which the Divestiture Business will be divested to the Approved Purchaser and Approved Purchaser will acquire the Divestiture Business.

Approved Transitional Supply Agreement means any agreement, for the supply of goods or services (other than Technical Assistance) to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Approved Transitional Technical Assistance Agreement means any agreement, for the supply of Technical Assistance to the Approved Purchaser, approved by the ACCC in accordance with the terms of this Undertaking.

Business Day means a day other than a Saturday, Sunday or public holiday in Brisbane, Queensland.

Change of Control means:

- the assignment or other transfer of the legal or beneficial ownership of some or all of the share capital of Black Rhino to any other person or entity that may impact compliance with this Undertaking in its entirety; or
- the sale or transfer of assets necessary, or which may be necessary, to enable Black Rhino to continue to comply with this Undertaking in its entirety.

Commencement Date means the date described in clause 3.1 of this Undertaking.

Consents means any Government Consents or Third Party Consents.

Corporations Act means the *Corporations Act 2001* (Cth).

Divestiture Business means the items described in Schedule 3 to this Undertaking.

Government Consents means any consents from any government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approvals or contracts required for the operation of the Divestiture Business;

Material Change means any change to the structure, attributes, extent or operations of the Divestiture Business or product or service sold by a Divestiture Business that may affect, or impact on, the competitiveness of the Divestiture Business.

Material Contract means any Agreement that is necessary for the operation of the Divestiture Business.

McDowall DBS means the bottleshop conducted from 42 McDowall Street, Roma QLD 4455;

Northern Road DBS means the bottleshop conducted from 61 Northern Road, Roma QLD 4455;

Proposed Purchaser means a person named in a Proposed Purchaser Notice.

Proposed Purchaser Notice has the meaning given to it in clause 6.2 of this Undertaking.

Public Mergers Register means the ACCC's public register of merger clearances, available at www.accc.gov.au.

Public Section 87B Undertakings Register means the ACCC's public register of section 87B undertakings, available at www.accc.gov.au.

Related Bodies Corporate has the meaning given by section 50 of the Corporations Act.

Related Entities has the meaning given to it by section 9 of the Corporations Act.

Related Parties has the meaning given to it by section 228 of the Corporations Act.

Royal 99 DBS means the bottleshop conducted from Shop 2, 34-38 Hawthorne Street, Roma QLD 4455 (where the other listed address for the same business is 73 Arthur Street, Roma);

Sale Period is defined in the Confidential Schedule 4 to this Undertaking.

Seller means Speedy Cocktails Pty Ltd ACN 619 330 255.

Technical Assistance includes advising on technical knowledge documentation, supporting the Approved Purchaser on acquiring specific assets necessary for the ongoing conduct of the Divestiture Business, providing staff with suitable experience and skills to assist and/or advice on technical issues, assisting in training for the Approved Purchaser's staff, and providing guidance on regulatory and legal aspects relating to the transfer of or application for licences.

Third Party Consents means any Consent from any entity that is not a government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approvals or contracts required for the operation of the Divestiture Business.

Transferred Personnel has the meaning given to it in clause 5.7 of this Undertaking.

Undertaking is a reference to all provisions of this document, including its schedules and as varied from time to time under section 87B of the Act.

2. Interpretation

- 2.1 In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

- (a) a reference to this Undertaking includes all of the provisions of this document including its schedules;
- (b) headings are inserted for convenience only and do not affect the interpretation of this Undertaking;
- (c) if the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day;
- (d) a reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision;
- (e) a reference in this Undertaking to any company includes its Related Bodies Corporate;
- (f) a reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced;
- (g) a reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking;
- (h) an expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency;
- (i) where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning;
- (j) a word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular.
- (k) a reference to the words 'such as', 'including', 'particularly' and similar expressions is to be construed without limitation;
- (l) a construction that would promote the purpose – or object – underlying the Undertaking (whether expressly stated or not) will be preferred to a construction that would not promote that purpose or object;
- (m) material not forming part of this Undertaking may be considered to:
 - (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or
 - (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking;
- (n) in determining whether consideration should be given to any material in accordance with paragraph (m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to the:

- (i) effect that reliance on the ordinary meaning conveyed by the text of the clause would, have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and
 - (ii) need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns;
- (o) the ACCC may authorise the ACCC Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose;
- (p) in performing its obligations under this Undertaking, Black Rhino will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking; and
- (q) a reference to:
 - (i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;
 - (ii) a party includes its successors and permitted assigns; and
 - (iii) a monetary amount is in Australian dollars.

Schedule 2 Proposed Purchaser Notice Form

This form sets out the information required by the ACCC in relation to a Proposed Purchaser.

Please note that it is an offence under s137.1 of the Criminal Code Act 1995 (Cth) to give information to a Commonwealth entity knowing that the information is false or misleading or omits any matter or thing without which the information is misleading.

1. Method of Delivery to the ACCC

The completed form with requested documents attached should be provided to the ACCC using the following method:

Email

Subject line: Proposed Purchaser Notice – [insert name of undertaking]
Address: mergers@accc.gov.au
Attention: Executive General Manager – Mergers and Exemptions Assessment Division

With an email copy sent to:

Address: mergersru@accc.gov.au
Attention: Director, Remedies Unit – Merger Surveillance & Coordination Branch, Mergers and Exemptions Assessment Division

2. Information Required

2.1 The ACCC requires the following information in order to assess a Proposed Purchaser.

Proposed Purchaser details:

- (a) Name of the Proposed Purchaser;
- (b) Address;
- (c) Contact name;
- (d) Telephone number;
- (e) Other contact details.

2.2 A submission containing the following information:

- (a) a description of the business carried on by the Proposed Purchaser including the locations in which the Proposed Purchaser carries on its business;
- (b) details of the Proposed Purchaser's experience in the relevant market(s);
- (c) the names of the owner(s) and the director(s) of the Proposed Purchaser;
- (d) details of any of the following types of relationships between Black Rhino and the Proposed Purchaser or confirmation that no such relationship exists whether within Australia or outside of Australia:

- (i) Black Rhino and the Proposed Purchaser are Associated Entities;
 - (ii) Black Rhino is an Entity Connected with the Proposed Purchaser;
 - (iii) the Proposed Purchaser is an Entity Connected with Black Rhino;
 - (iv) Black Rhino and the Proposed Purchaser are Related Entities;
 - (v) Black Rhino and the Proposed Purchaser are Related Parties;
 - (vi) any Related Party, Related Entity or Entity Connected with Black Rhino is a Related Party, Related Entity or Entity Connected with the Proposed Purchaser;
 - (vii) Black Rhino and the Proposed Purchaser have a contractual relationship or had one within the past three years, other than those attached to this form;
 - (viii) the Proposed Purchaser is a supplier of Black Rhino or has been in the past three years;
 - (ix) Black Rhino is a supplier of the Proposed Purchaser or has been in the past three years; and
 - (x) any other relationship between Black Rhino and the Proposed Purchaser that allows one to affect the business decisions of the other;
- (e) a section addressing the following factors, including any information adverse to the Proposed Purchaser, in the power, possession or control of Black Rhino:
- (i) whether the draft sale and purchase agreement is consistent with this Undertaking;
 - (ii) whether the Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement;
 - (iii) whether the Proposed Purchaser is of good financial standing;
 - (iv) whether the Proposed Purchaser has an intention to maintain and operate the Divestiture Business as a going concern;
 - (v) whether the Proposed Purchaser is able to conduct the Divestiture Business effectively;
 - (vi) whether the divestiture of the Divestiture Business to the Proposed Purchaser will address any competition concerns of the ACCC, including any relationships (including but not limited to shareholding interests, other proprietary interests, contracts, arrangements or understandings) between the Proposed Purchaser and other entities in a relevant market, and the likely long-term viability and competitiveness of the Divestiture Business under the ownership of the Proposed Purchaser; and
 - (vii) any other matters that may affect the Proposed Purchaser's capacity or ability to acquire or operate the Divestiture Business, such as outstanding legal action or disputes.

2.3 Please also attach to this form:

- (a) the finalised draft of the sale and purchase agreement for approval by the ACCC in accordance with this Undertaking.

- (b) the finalised draft of any transitional technical assistance agreement for approval by the ACCC in accordance with this Undertaking.
- (c) the finalised draft of any transitional supply agreement for approval by the ACCC in accordance with this Undertaking.
- (d) any documents required to support the information provided by Black Rhino pursuant to this form.

Schedule 3 Divestiture Business

The Divestiture Business means the whole of the business conducted from Royal 99 DBS or Northern Road DBS (or both), including all assets, rights, interests, including leasehold interests, and other property associated with that business including (without limitation):

- (a) the business goodwill;
- (b) plant and equipment;
- (c) inventory and stock in trade;
- (d) the benefit of the premises lease or other occupancy rights;
- (e) the benefit of all assignable supplier contracts and operating agreements (to the extent required by the Approved Purchaser);
- (f) transferring employees (to the extent employment is offered by the Approved Purchaser and accepted by the respective employees);
- (g) all transferable licences, permits and approvals;
- (h) customer and business records to the extent legally transferable;
- (i) intellectual property, trading names and branding used in connection with the Divestiture Business to the extent transferable and to the extent sought by the Approved Purchaser. For clarity, the Approved Purchaser will have the discretion to accept the existing branding or procure new branding;
- (j) telephone numbers, email addresses, websites and social media accounts used
- (k) exclusively in connection with the Divestiture Business, where transferable; and
- (l) all other assets, rights and interests necessary for the Approved Purchaser to operate the Divestiture Business as a viable, ongoing and effective independent competitor.

Confidential Schedule 4

[Redacted – Confidential]